



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/22/2026 - 09:00 AM

09/15/2026

3:21 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

24-PRO-00719	Conservatorship of LouAnn Darleen Ghiozzi	ORDER APPROVING PETITION FOR ATTORNEYS' FEES AND COSTS
Line 3	Proposed Conservatee: Ghiozzi, LouAnn Darleen (MARTIN, ALEXANDRA R. GRUBER, JOSEPH E., JR) Petitioner: BUCKMASTER, LISA (FLETCHER, ROBERT S DERIEG, GEORGE M.) Petitioner: Ghiozzi, Aldo Anthony (FLETCHER, ROBERT S DERIEG, GEORGE M.) Petitioner: GHIOZZI, MICHAEL (FLETCHER, ROBERT S DERIEG, GEORGE M.) Proposed Conservator: Ghiozzi, Aldo Anthony (FLETCHER, ROBERT S DERIEG, GEORGE M.)	Petition Hearing
Tentative Ruling: NO APPEARANCE Petition for Attorneys' Fees and Costs is GRANTED absent cogent objection.		

24-PRO-01467	IN THE MATTER OF THE 2006 RICE FAMILY TRUST	PETITION TO CONTEST SUCCESSOR TRUSTEE APPOINTMENT, REQUEST ACCOUNTING, AND REPORT FIDUCIARY MISCONDUCT- Continued from 05/01/26
Line 4	Petitioner: Carruth, Joanne (Pro Se) Petitioner: LEIBES, RICHARD (Pro Se) Petitioner: Rice, Thomas (Pro Se) Decedent: RICE, ENES CATHERINE Decedent: RICE, WILLIAM RUSSELL	Petition Hearing



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Tentative Ruling:

APPEARANCE OPTIONAL

There are two separate petitions seeking similar relief: PETITION TO CONTEST SUCCESSOR TRUSTEE APPOINTMENT, REQUEST ACCOUNTING, AND REPORT FIDUCIARY MISCONDUCT filed 8/07/25 by Richard Liebes, and VERIFIED PETITION TO COMPEL INFORMATION AND ACCOUNTING, TO REMOVE TRUSTEE, AND TO APPOINT NEUTRAL FIDUCIARY filed 5/28/2026 by Thomas Rice. To the extent that both petitions seek an accounting, suspension of the trustee, and appointment of a neutral fiduciary, those requests are GRANTED:

Joanne Carruth is suspended as trustee and the Court appoints a neutral private professional fiduciary off of the Court's list as temporary successor trustee. If no private professional fiduciary agrees to this appointment, the Court will appoint the San Mateo County Public Guardian.

Joanne Carruth is ordered to file and serve on the beneficiaries a full trust accounting within sixty (60) days for the period beginning on the date Ms. Carruth began acting as trustee or the date of surviving settlor's death, whichever is earlier, to the present. Within sixty (60) days, Ms. Carruth is ordered to produce to the beneficiaries all supporting records for the accounting including, but not limited to:

- trust bank statements,
- transaction lists or registers,
- receipts, invoices, and bills,
- support for reimbursements,
- support for payments made to related parties, and
- records for any personal account used for trust-related transactions, to the extent necessary to trace trust funds.

Joanne Carruth is ordered to file a verified Response to each petition within 30 days. The Court admonishes Ms. Carruth that filing unverified petitions in probate is impermissible, and such documents are not considered by the Court. The remaining issues are continued to February 11, 2027 at 9:00 am for status and the setting of trial, if necessary. If no verified opposition is filed, the Court would consider granting the balance of the relief sought in each petition, to the extent there exists sufficient proof via declarations and admissible exhibits.



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25-PRO-01101	Estate of Thomas Joseph Everett	First and Final Report of Administrator, Waiver of Accounting, Petition for Statutory Commission to the Administrator, Petition for Statutory Fees to the Attorney for the Administrator, and Petition for Final Distribution of Estate
Line 5	Petitioner: Everett, John A. (KNOX, BARBARA G.) Decedent: Everett, Thomas Joseph Personal Representative: Everett, John A. Claimant: LVNV FUNDING LLC SUCCESSOR IN INTEREST TO COASTAL COMMUNITY BANK Claimant: LVNV FUNDING LLC SUCCESSOR IN INTEREST TO HSBC BANK NEVADA, N.A. Claimant: Phillips & Cohen Associates, Ltd	Petition for Final Distribution
Tentative Ruling: NO APPEARANCE Petition for Final Distribution is GRANTED absent cogent objection.		

26-PRO-00539	Guardianship of Yesenia Rosaydi Perez Lopez	
Line 6, 7	Petitioner: Perez Lopez, Yesenia Rosaydi (TESORO, GERVY JHON) Ward: Perez Lopez, Yesenia Rosaydi Proposed Guardian: Perez Lopez, Vivian Karlily	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed) The Court intends to GRANT both petitions.		